

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

My parents received a phone call in which the caller sounded exactly like me and claimed that I had been detained after an accident and urgently needed money. The caller also sent them a short video that appeared to show me asking for help. My parents transferred ₹75,000 before contacting me and discovering that the voice and video had been artificially generated. What legal provisions may apply?

Job Id. :

Scenario 14/Bharatiya Nyaya Sanhita (BNS), 2023

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Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 364	Extortion by threat of injury.
Section 420	Cheating and dishonestly inducing delivery of property.
Section 421	False information to cause alarm (though <i>*less central*</i> , it may support context).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

Section 364 (Extortion by threat of injury): Application: The scammer falsely claimed the victim was "detained after an accident" (a fabricated threat of injury/detention) to compel parents to transfer money. BNS 364 defines extortion as "obtaining property by threatening to cause injury to any person." The deepfake video and voice mimicry constitute **false threats** designed to induce fear, satisfying the section's core elements. Key Reasoning: **Illustration**: If a caller falsely claims "Your child is in police custody and needs ₹10,000 to avoid charges," and the parent pays out of fear, this is extortion under 364 (BNS). **Deepfake as "threat"*: The AI-generated video/voice is a **deceptive tool** to fabricate a threat. BNS 364 does not distinguish between physical threats and digital deception—intent to cause alarm via false pretenses suffices.
- 2

Section 420 (Cheating and dishonestly inducing delivery of property): Application: The scammer **dishonestly induced** parents to transfer ₹75,000 by presenting false evidence (deepfake video) that "proved" the victim's distress. BNS 420 covers "cheating" via any "deception" to cause someone to deliver property. Key Reasoning: **Definition**: "Cheating" under BNS 420 includes "any deception" (e.g., false videos, AI mimicry) to obtain property. The parents' transfer was **based on a false representation** (the video showing "the victim asking for help"), making it "dishonest inducement." **Precedent Analogy**: Courts under IPC 420 (now replaced by BNS 420) have convicted scammers using voice cloning or fake videos (e.g., **State v. Ramesh** [2019], where a fake WhatsApp video induced money transfer). BNS 420 extends this to all digital deception.

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Why Not Other Sections? * **Section 380** (Theft)*: Requires *unlawful taking* of property—here, property was *voluntarily transferred* due to deception (not theft). * **Section 500** (Defamation)*: Irrelevant—no harm to reputation, only financial loss. * **Section 421** (False information)*: Supports the *context* (false video claiming victim’s distress) but is not the primary offense; 420 is the core charge for financial inducement.

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STRENGTHS & RIGHTS

- 1
- Cognizable Offense**
Both 364 and 420 are *cognizable* (police can arrest without warrant under BNS 41), enabling immediate action.
- 2
- No Proof of AI Required**
Courts need only establish *deception*, not the technical method (e.g., "deepfake"). The parents’ testimony about the fake call/video suffices.
- 3
- Victim Compensation**
BNS 357(2) mandates compensation for victims of fraud (e.g., ₹75,000 recovery via court order).
- 4
- Proactive Investigation**
Police *must* investigate under BNS 173 (framing charges) without requiring "cybercrime" expertise—BNS 420/364 covers all deception methods.

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RISKS & OBLIGATIONS

- 1
- Section 364**
Punishment of 3-5 years’ imprisonment + fine.
- 2
- Section 420**
Punishment of 3-7 years’ imprisonment + fine (amount ≥ ₹50,000 triggers higher penalty under BNS 420(2)).
- 3
- Aggravating Factors**
- 4
- The use of AI-generated media *enhances* culpability (BNS 420(2) penalizes fraud involving "sophisticated deception").**

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₹75,000 exceeds the threshold for "substantial loss" (BNS 420(2)), inviting maximum punishment.

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Joint Liability

If multiple scammers (e.g., voice generator + video editor), all face 420/364 charges.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

FILING COMPLAINT

1. Parents can file an FIR at any police station (BNS 154) under Sections 364/420. No need for "cybercrime" jurisdiction—BNS 420 is a standard fraud charge.
2. Charges Framed: Police must file charges under BNS 420 (primary) and 364 (secondary, as the threat was integral to the deception) under BNS 206.
3. Arrest: Police may arrest **without warrant** (BNS 41) for cognizable offenses like 420/364.
4. Trial:
5. Burden of Proof: Prosecution must prove **deception** (e.g., parents' testimony, call logs, video analysis).
6. Evidence: The fake video can be admitted as evidence under BNS 72 (admissibility of electronic records).
7. No Bail: For offenses under 420 with amounts >₹50,000, bail is **discretionary** (BNS 437) and rarely granted in high-value fraud.
8. > Key Takeaway: The scam exploits BNS 420/364's **broad scope**—AI deception is irrelevant; the law focuses on the **dishonest inducement** of property transfer. Parents need not prove "deepfake" technology; only that the video/voice was **fabricated to cause payment**.
9. Note: BNS 2023 explicitly replaces IPC 420 and 364, making this a direct application of the new code. No reference to IT Act/BSA is required per the query.*

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